सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ००९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 5 **Date: .05.2019**

दिनांक 27.02.2019 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 29.05.2019

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 29.05.2019 को 11.30 बजे हुई। जिसकी अध्यक्षता श्री अनंत कृष्णन सीमाशुल्क आयुक्त (निर्यात) द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) held on 29.05.2019 at 11.30 A.M. was presided over by Shri S. Anantha Krishnan Commissioner of Customs (Export).

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री तपन कुमार Shri Tapan Kumar, संयुक्त आयुक्त (निर्यात)/Jt. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री राजेश क. साहु /Shri Rajesh k. sahu उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री दुर्गेश तिवारी/ Shri Durgesh Tiwari उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
सुश्री प्रिया जाधव/ Ms Priya Jadhav उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायक आयुक्त (आयात)/Asst. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
Dr. Sandeep Gunjal/डॉ संदीप गुंजाल सहायक आयुक्त/Asst. Commissioner (APSC)	Airport Special Cargo, हवाई अड्डा विशेष कार्गो

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Ashok Satavase, Sh Manoj Singh, Sh Mohamed Nasir, Shri Nandan Kanchan, Sh Mayilvanan T	MIAL (Custodian)
Shri Kaushal H. Thakker	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA
Shri Bala Ayer, Shri Thomas Alvares, Mohsin G. Charania	ACAAI
Shri S.M sharma, SBA dev	Air India & AIATSL
Shri Paresh Shah	WISA
Sandeep B.Kadam	Liladhar pasoo
Shri Sunil Kumar Singh	SBI
Mr.Zubin Daver	Cathay Pacific

At the outset the Commissioner of Customs (Export) welcomed the members of trade Customs Brokers, Airlines Representatives, Custodian Representatives, and other stake holders present in the meeting and started the meeting. During the meeting following agenda points were discussed.

New Agenda points taken up in the Meeting

POINTS RAISED BY BCBA

1. Increase in dwell time due to shortage of manpower and equipment's at MIAL Export Shed

The trade informed that there is shortage of manpower and equipments at MIAL Export Shed, ACC, Mumbai due to which the offloading of cargo and movement of the same in export shed is being hampered. Till date the problem is not resolved due to which all export consignments are getting delayed thereby resulting in increase in dwell time and transaction cost.

Mr. Manoj Kumar Singh, VP, MIAL informed that it was a single incident when most of the staff was on leave due to Ramzan on Friday. The senior management of MIAL immediately came into action and additional work force was deployed and all consignment was cleared for Export.This being a rare incident cannot be treated as a general issue.

The Commissioner of Customs (Export) enquired from the Trade whether there is any repetition of similar incident or it was a single incident as informed by MIAL. The BCBA informed that it was about the same incident but of late the unloading of cargo is delayed frequently which is to be sorted out.

(Point Closed)

2. E-Sanchit issues for export

In view of providing transparency to the Export , the trade has requested to issue suitable facilitation notice regarding mandatory documents which are required to be uploaded in E-Sanchit for export.

The Commissioner of Customs (Export) informed the trade that the issue shall be examined to determine which are mandatory documents to be uploaded in E-sanchit along with Shipping bill and necessary Public Notice will be issued.

(Action: Customs(X))

3. **Singapore Airlines demanding Demand Draft for payment of DO charges**

This point was discussed during the last couple of PTFC meeting, inspite of follow ups with Singapore Airlines for acceptance of CB members cheque, Singapore Airlines is reluctant to accept the request & is still insisting of receiving payments by Demand Draft only**.**
The trade requested to write a letter to Ministry of Civil Aviation about the wrong practice of Singapore Airline (and some other airlines) of non-accepting their payment online via RTGS, or a Cheque issued by the trade members. The Custom Brokers also requested that action may be taken against Singapore Airlines under Customs Cargo Handling Regulations.

The Commissioner (Export) desired comments from the Singapore airlines but no representative from any airlines was present in the meeting. The member of trade informed that similar issue is also being faced at ACC ,Delhi . At the same time Mr. Manoj Kumar Singh, VP MIAL informed that the MIAL is ready with a proposal to implement a module where a custodian itself shall be issuing e-DO after collecting all the charges including airlines charges. This will help the customs broker and trade in a big way as they don't have to visit the Offices of airlines, consolidators etc.

The Commissioner of Customs (Export) appreciated the pro-active measures taken by MIAL and informed that separate discussions/meetings may be conducted to align the procedures with the statutory provisions and rules and regulations.

(Point Closed)

4. Lack of Monsoon preparedness at ACC Mumbai-Air India Shed

Onset of monsoon is around the corner & the approach road to ACC is in extremely Bad shape which may cause in delay of consignments

Mr. Manoj Kumar Singh VP MIAL informed that all measures has already been taken and the Air Cargo Complex is completely prepared for the Monsoon season.

AIATSL representative has informed they have procured pumps to clear any water logging.

(Point Closed)

5. **Delay in releasing drawback refund u/s 75**

Members / Exporters are facing tremendous difficulty as there is delay in releasing of drawback refund u/s 75, even after drawback scroll being generated and submitted to SBI. There is considerable delay in funds getting credited to Exporters Account.

The Commissioner of Customs (Export) enquired whether the issue is specific to some cases or is a general issue. He also asked the member of BCBA to elaborate the issue.

The member of BCBA informed that it is a general issue and may be because of improper functioning of RBI module or PFMS module. However they could not explain

the exact issue which could be addressed. The BCBA requested that the point may be dropped and they will come up again with the clarity on the issue.

(Point Closed)

POINTS FROM ACAAI:

6. IGST refunds are not being processed. In spite of sending all the details

The Commissioner of Customs (Export) informed that they released an IGST refund of around 2163 Crores in the previous financial year and IGST refund of around 971 Crores have already been cleared in this financial year. The release of IGST refund is being monitored carefully by the department. However if still there is any such delay the Exporter may meet the Concerned officials with the specific case detail.

(Point Closed)

7. Creation of a special cell as there are too many shipping bills that require Re-transmission

The Commissioner of Customs (Export) asked the representative of trade for the exact numbers of such incidents in a month, however, the data was not available. He informed that the number of such incidents shall be monitored for one month and if the need arises a separate cell shall be created as requested by the Trade.

(Action:CUSTOMS(X)

8. There are some agents whose PAN based CHA number is recorded wrongly in ICEGATE and due to this they are unable to complete the function of "Goods Registration" for imports. The trade approached ICEGATE in this matter but not getting proper response.

The Representative of ACAAI informed that in some cases when they proceed for registration of their goods in Icegate they receive a message that CHA number does not tally with the CHA number mentioned in the BOE. They informed that they contacted ICEGATE and RMD however the issue could not be resolved.

Additional Commissioner of Customs (Import) informed that when Customs broker is able to file a BoE with his CB no it doesn't seems that the same number is not accepted during goods registration. He asked the CB's to submit some of the screenshots of such errors to EDI section for complete understanding of issue.

(Action:ACAAI)

Additional Points raised by ACCAI:

9 For export of Narcotics shipment, the shipper first has to apply to the Central Bureau of Narcotics (CBN) for permission to export this drug. When the permission is given, the CBN issues an Authorization Certificate with a number. One copy of the Authorization Certificate is given to the shipper and the other copy is sent by Speed Post to the respective airport of departure; in our case to the Commissioner of Customs (Exports). For export of Narcotics shipment, the shipper first has to apply to the Central Bureau of Narcotics (CBN) for permission to export this drug.

Of late, the CBN has started giving the customs copy directly to the shipper in open condition (not in sealed cover) instead of sending it by Speed Post. There have been occasions when the customs have refused to accept directly from the shipper. Customs said that they must receive through proper channel which is by post.

The trade suggested that CBN may be requested that customs copy of the Authorisation Certificate be uploaded in customs system (ICES) by CBN. The authorisation certificate will be available in system immediately, and this method is more safe and secure than by speed post or hand delivery. The trade also requested that a provision be made in E-Sanchit to upload the shippers 'copy of the Authorisation Certificate, by the customs broker.

The Commissioner of Customs (Export) opined that since all the certificates are coming online these day, the issue will be taken up with DG system .

(Action: Customs(X))

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदय आयुक्त महोदय (आयात) और आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Commissioner of Customs (Import) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

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s/d on 18.06.2019

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs(I)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.